

TENTATIVE RULINGS

FOR: August 04, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

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Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. B will be heard in Dept. A ****

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Robert Bernard Hope

24PR000315

[1] CASE MANAGEMENT CONFERENCE RE: PETITION FOR DETERMINATION OF HEIRS [Filed 5/6/2026]

APPEARANCE REQUIRED to confirm that Administrator’s amended proposed order on the Petition for Determination of Heirs has been filed and served, and that there are no objections thereto. (See 7/7/26 Minute Order.)

[2] STATUS HEARING RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. Pursuant to Probate Code section 12200, a personal representative is required to either petition for an order for final distribution of the estate or make a report of status of administration not later than one year after the date of issuance of letters. There is no petition for final distribution or status report on file. Appearance is required to show the condition of the estate, the reasons why the estate cannot be distributed and closed, and an estimate of time needed to close administration of the estate. (Prob. Code, § 12202, subd. (a).)

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In The Matter of Karen K. Carson Revocable Trust

26PR000040

[1] SECOND AMENDED PETITION FOR ORDERS

TENTATIVE RULING: The matter is CONTINUED to September 23, 2026, at 8:30 a.m. in Dept. A. Petitioner is ordered to provide code-compliant Notice of the continued hearing to all parties identified in the Second Amended Petition as being entitled thereto.

There remains no sufficient proof of service of the Amended Petition and no proof of service of the Notice of Hearing in the Court's file. (See Probate Code § 17203 [requiring 30 days' notice of hearing on trust matters].) The Court notes that Petitioner filed a Proof of Service of the Amended Petition on July 13, 2026 (7/13 POS). However, the 7/13 POS does not provide proof that the Amended Petition was served on all persons listed in the Amended Petition as entitled to notice. (Compare *id.* with Amended Petition at 11:2.) Specifically, there is no proof of service of the Amended Petition on Ian Lowney, Colin Lowney, Maria Ramirez, Teresa Gonzalez-Ramirez, or Suesan [sic] Kelly Hunt. (See Amended Petition at 11:2.) Moreover, there remains no proof of service of Notice of the instant hearing. The Court lacks jurisdiction to rule on a matter that has not been properly noticed for hearing on the date in question. (See *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.)

[2] RESPONDENT SUSANNAH G. CARSON'S MOTION FOR SANCTIONS

TENTATIVE RULING: The matter is CONTINUED to September 23, 2026, at 8:30 a.m. in Dept. A.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. NATURE OF MOTION

Respondent Susannah G. Carson moves, pursuant to California Civil Code of Procedure section 128.7 (Section 128.7), for an order imposing monetary sanctions, in the form of reasonable attorney's fees and costs, against Petitioner John P. Lowney, III and his attorney Kevin R. Snyder, jointly and severally, in the amount of \$15,896.50. Ms. Carson so moves on grounds that Petitioner filed the Second Amended Petition for an improper purpose.

B. PROCEDURAL BACKGROUND

Mr. Lowney commenced the instant action by filing, on February 19, 2026, a petition for orders: (1) invalidating a trust amendment based on lack of capacity, undue influence, and fraud; (2) removing Susannah G. Carson as Trustee; (3) cancelling the subject instrument; and (4) determining title to trust assets.

It appears uncontroverted that the subject Trust was an estate planning vehicle for decedent Karen K. Carson (Decedent), and that Decedent was survived by three children: Mr. Lowney, Respondent Susannah Carson, and Katherine K. Sukla. Pursuant to the allegations of the Petition, Mr. Lowry lived with, and served as Decedent's primary caregiver from June 29, 2019 through December 2024. (See *id.* at ¶ 4.) At that time, Susannah Carson removed Mr. Lowney from the residence and took over caretaking duties. (See *id.* at ¶ 5.) In January 2025, Decedent executed a trust restatement that disinherited Mr. Lowney and Ms. Sukla. (See *id.* at ¶ 6.) The gravamen of the Petition was that the restatement was the product of undue influence on Decedent by Susannah Carson.

On March 23, 2026, Susannah G. Carson demurred to the Petition arguing that each cause of action was time barred, pursuant to Probate Code section 16061.8, based on the assertion that "co-counsel of record for Respondent, Lori Hunt, served all heirs, including but not limited to, Petitioner John P. Lowney a valid, timely and complete 'Notification by Trustee' on April 5, 2025, disclosing a true and complete copy of the Trust." (Support Memorandum filed in support of Demurrer at 7:7-10.)

On April 14, 2026, Petitioner filed an opposition to the demurrer. However, on April 15, 2026, Petitioner filed an Amended Petition.

By Minute Order of May 6, 2026 (5/6 M.O.), the Court directed the Clerk to strike the Amended Petition on grounds that it was filed without leave of Court.

That Minute Order also addressed the pending demurrer. It provides, in part, as follows.

The matter came on originally for hearing on April 28, 2026. Attorneys David Balter and Nicholas Conti appeared on behalf of Respondent, and attorney Kevin Snyder appeared on behalf of Petitioner. At the hearing, Petitioner and

Respondent stipulated to the fact that, on April 5, 2025, Attorney Lori Hunt served, by mail, on behalf of Respondent, the letter attached as Exhibit 1 to the Request for Judicial Notice filed in support of the instant demurrer, including the Notification by Trustee Pursuant to Probate Code Section 16061.7 attached thereto, and that, on April 21, 2025, Attorney Lori Hunt served, by mail, on behalf of Respondent, the letter attached as Exhibit 2 to the Request for Judicial Notice filed in support of the instant demurrer, including the Notification by Trustee Pursuant to Probate Code Section 16061.7 attached thereto. (See Minute order of April 28, 2026.)

The Court finds that the stipulation constitutes a judicial admission of the fact of the service of the Notices by Trustee Pursuant to Probate Code Section 16061.7. (See *Valerio v. Andrew Youngquist Construction* (2002) 103 Cal.App.4th 1264, 1271 [held: a judicial admission is “a waiver of proof of a fact by conceding its truth, and it has the effect of removing the matter from the issues”]; see also *Barsegian v. Kessler & Kessler* (2013) 215 Cal.App.4th 446, 451 (*Barsegian*), [‘Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission’].) ‘Facts established by pleadings as judicial admissions “are conclusive concessions of the truth of those matters, are effectively removed as issues from the litigation, and may not be contradicted, by the party whose pleadings are used against him or her.” (Ibid.)’

Based on that judicial admission, the Court sustained the demurrer. “Reviewing the substance of the Petition and its practical effect, the Court concludes that it is an action challenging the validity of a trust, and is therefore subject to the limitations of Probate Code section 16061.8. The Petition was filed February 19, 2026, more than 120 days from and after April 5, 2025, and is therefore barred pursuant to that statute.” (5/6 M.O.) However, the Court granted Mr. Lowrey 10 calendar days’ leave, from Notice of Entry of Order, to amend the Petition, “to state claims relating to undue influence, fraud, and breach of fiduciary duties, that do not, in substance and/or practical effect, constitute an attack on the validity of the Trust Amendment.” (*Ibid.*) Susannah Carson served and filed a Notice of Entry of Order on May 6, 2026.

On May 19, 2026, Mr. Lowrey filed a Second Amended Petition (SAP). Susannah Carson “now files this Motion, pursuant to California Code of Civil Procedure Section 128.7, on the grounds Petitioner presented his SAP to this Court for an improper and frivolous purpose.” (Support Memo at 4:17-19.)

C. ANALYSIS

Code of Civil Procedure section 128.7, subdivision (b), provides, in part, that “[b]y presenting to the court, . . . , a pleading, . . . an attorney or unrepresented party is certifying that to the best of the person’s knowledge, information, and belief, formed after an inquiry reasonable under the circumstances [that] . . . [i]t is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.” If the Court finds that Code of Civil Procedure section 128.7, subd. (b) has been violated, it may

award sanctions so long as the sanctions are “limited to what is sufficient to deter repetition of this conduct or comparable conduct by others similarly situated.” (Code of Civil Procedure section 128.7, subd. (d).)

The Court finds that Susannah Carson has complied with the safe-harbor provision of Probate Code section 128.7, subdivision (c)(1). (See Declaration of David Balter at ¶¶ 10-11.)

Ms. Carson argues that the SAP is frivolous because it was filed “after the Court-ordered 10-day period had expired, [and] because it still seeks to effectively invalidate the Trust based on lack of capacity and undue influence.” (See Support Memo at 8:7-9.) She asserts that “all of Petitioner’s causes of action in the SAP attack the validity of the Trust and are thus time-barred under Probate Code section 16061.8 . . .” (*Id.* at 8:13-16.) On these grounds, “Respondent seeks \$15,896.50 in sanctions to compensate for the reasonable attorney’s fees and costs incurred in defending against Petitioner’s frivolous and improper SAP. [Citation.]. This amount reflects the fees incurred for: (1) the demurrer to the SAP; (2) the meet and confer efforts related to the SAP; and (3) this Motion for Sanctions.” (*Id.* at 11:8-11.)

There is, however, no demurrer to the SAP on file. On Reply Ms. Carson notes that she submitted, electronically, a demurrer to the SAP on June 16, 2026. The Court takes Notice of a Document Return Notice filed on that date in the matter. It states that “[t]he court cannot schedule a demurrer hearing for the following day. The hearing must be set at least two weeks out from the date of filing.”

Ms. Carson argues that the Clerk improperly rejected that demurrer based on the holding in *Goebner v. Superior Court* (2025) 110 Cal.App.5th 1105, 1113 (*Goebner*). The Court agrees with Ms. Carson. However, there is no indication that Ms. Carson ever brought this to the Court’s attention – either by communicating directly with the Court Clerk, or by requesting an order compelling the Clerk to accept the filing. There is, similarly, no indication in the Court’s file that Ms. Carson attempted to refile the demurrer. Thus, even accepting that the Court Clerk *should* have accepted the demurrer for filing on June 16, 2026, the fact remains that no demurrer to the SAC has been filed or calendared in the action.

The import of this is two-fold. First, as no demurrer has been filed, the Court finds, at present, no grounds for awarding attorneys’ fees incurred in relation thereto. More fundamentally, a demurrer is the appropriate vehicle for attacking a pleading on grounds that its claims are time barred.¹ As no demurrer has been filed, the question of whether the claims asserted in the SAP are, in fact, time barred, is not properly before the Court. In this context, Ms. Carson’s request for an award of monetary sanctions is premature.

However, the Court is sympathetic to Ms. Carson’s frustration with Mr. Lowrey’s delays in properly serving the SAP and noticing its hearing. As provided in the concurrent ruling on the SAP, the Court is, *once again*, forced to continue that hearing based on these failures.

¹ To the extent that Respondent asks the Court to rule that the claims in the SAP are time barred through the instant Motion, the Court declines to do so. Any finding, here, that one or more claims are barred would do nothing to advance the litigation as the deficient pleading would remain fully operative.

Moreover, the Court acknowledges that Ms. Carson’s demurrer should have been accepted for filing when submitted in mid-June.

Based on the foregoing, the Court elects to defer consideration of the merits of the instant Motion until after issues regarding the adequacy of the SAP are resolved. As the hearing on the SAP is now continued to September 23, 2026, the time for Ms. Carson to file a demurrer has not yet run. (See *Goebner, supra*, 110 Cal.App.5th at 1113.) The Court notes that nothing in the *Goebner* holding, and no other authority known to the Court, prohibits Ms. Carson from setting hearing on the demurrer in advance of the hearing on the SAP (so long as the notice and filing requirements of the Code of Civil Procedure are complied with). The Court further notes that, while *Goebner* and the Probate Code *permit* the demurrer to be filed before or at the hearing on the SAP, the realities of the Court’s resource limitations would very likely require a continuance of both hearings if the filing occurs less than the fifteen Court days prior thereto.

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In The Matter of Deana A Pena

26PR000116

PETITION FOR LETTERS OF ADMINISTRATION

TENTATIVE RULING: There is no proof of publication on file.

If a proper proof of publication is filed prior to the hearing, the petition will be CONTINUED to September 4, 2026, at 8:30 a.m. in Dept. A to allow Petitioner to remedy the deficiencies listed below. Petitioner may wish to contact a probate attorney or the Court’s self-help center regarding the below deficiencies.

- (1) There is no completed Proof of Service on all heirs on file. (Prob Code, §§ 8100, 8110). The Court notes that the only other heir listed in the Petition is Decedent’s Husband, whose location is reported “unknown.” To the extent Petitioner is unable to complete service of the Petition on Decedent’s Husband, Petitioner is directed to submit a declaration demonstrating due diligence in attempting to locate him, and a Proposed Order Dispensing with Notice (Form GC-021).
- (2) There is no Duties and Liabilities form (DE-147) on file.
- (3) The Petition requests both Letters of Administration and Letters of Special Administration. (See Pet., Caption and § 2(b)(3)-(4).) Because the Petition does not appear to request limited authority pending issuance of permanent letters, the Court construes the Petition only as one for Letters of Administration. To the extent Petitioner disagrees with this interpretation, he shall file an Amended Petition.
- (4) The Petition states that Decedent died intestate (see Pet., § 3(f)(1)) and also includes allegations inconsistent therewith (see *id.*, §§ 2(b)(1), 3(g)(1)). Because the Petition is one for Letters of Administration (consistent with an intestate decedent), the Court will accept the intestacy allegations as accurate and will construe the inconsistent allegations as inadvertent errors. To the

extent Petitioner disagrees with this interpretation, he shall file an Amended Petition.

- (5) The Petition states that all heirs at law have waived bond. (Pet., § 3(e)(3).) However, there are no bond waiver forms (DE-142/DE-111) in the file. Petitioner is directed to submit bond waiver forms by all heirs. Otherwise, the proper amount of bond to be imposed is \$420,000. (Prob. Code, § 10453.)
- (6) There is no proposed order (DE-140) or proposed letters (DE-150) on file.

However, if no publication has been made, the Court will be forced to DENY the Petition without prejudice. Proper publication is required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C).) Therefore, the Petition may not be heard unless and until an affidavit of publication is on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing on the Petition must be no less than 15 days and no more than 30 days after the Petition is filed. (Prob. C. §8003(a).) For this reason, if no proper publication of the hearing was made, the Court is without jurisdiction to hear the Petition and cannot continue the hearing to permit Petitioner to cure the defect.

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Estate of Allen Paul Stanton

26PR000120

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The matter is CONTINUED to August 20, 2026, at 8:30 a.m. in Dept. A to allow Petitioner to remedy the following issue. The Petition indicates that bond is not required because all beneficiaries waive bond. (See Pet., at §§ 2, subd. (d)(1) and 3, subd. (e)(3).) There is, however, no waiver on file for identified heir JoAnn Wanek.

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Estate of Lydia Fajardo Santos

26PR000142

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There is no proof of publication on file. If a proper proof of publication is filed prior to the hearing, the petition will be GRANTED, Richard S. Thomas will be appointed as probate referee, and the matter will be set for a Status Hearing Re: Final Distribution on August 04, 2027, at 8:30 a.m. in Dept. A. Petitioner will need to submit Proposed letters (DE-150) for the Court's signature.

However, if no publication has been made, the Court will be forced to DENY the Petition without prejudice. Publication is required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C).) Therefore, the Petition may not be heard unless and until an affidavit of publication is on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing

on the Petition must be no less than 15 days and no more than 30 days after the Petition is filed. (Prob. C. §8003(a).) For this reason, if no publication of the hearing was made, the Court is without jurisdiction to hear the Petition and cannot continue the hearing to permit Petitioner to cure the defect.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

25 Executive, LLC v. Julie Nguyen

25CV002614

CROSS-DEFENDANTS’ DEMURRER TO, AND MOTION TO STRIKE PORTIONS OF, FIRST AMENDED CROSS-COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to August 28, 2026, at 8:30 a.m. in Dept. A. Nguyen is ordered to submit additional briefing and Cross-Defendants are granted leave to file a sur-reply as set forth below. The Case Management Conference set for August 4, 2026 is CONTINUED to October 20, 2026 at 8:30 am in Dept. A.

Cross-Defendants 25 Executive, LLC, Jeremy Sill, Jesse Van Coutren; Michael Holcomb; and Strong & Hayden (“Cross-Defendants”) demur, pursuant to Code of Civil Procedure sections 430.10, subdivisions (e) and (f),² to the First Amended Cross-Complaint (“FACC”) of Julie Nguyen (“Nguyen”). Cross-Defendants further move, pursuant to Code of Civil Procedure sections 435 and 436, subdivision (a), for an order striking the following portions of the FACC: (a) Paragraphs 30, 42, and 47, and Prayer Paragraph 2; (b) Paragraphs 30, 42, and 47, and Prayer Paragraph 2; (c) Prayer Paragraph 7, insofar as it seeks attorney’s fees; and (d) Cross-Defendants further move to strike all allegations and requests for relief seeking recovery for injuries.

Rather than opposing the Demurrer and Motion to Strike, on July 22, 2026, Nguyen filed a purported Second Amended Cross-Complaint (“SACC”).

“A party may amend its pleading once without leave of the court at any time ... after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. A party may amend the pleading after the date for filing an opposition to the demurrer or motion to strike, upon stipulation by the parties.” (§ 472, subd. (a) (Section 472).) That section, however, cannot be relied upon by a party to *further* amend an already amended pleading. (*Hedwall v. PCMV, LLC* (2018) 22 Cal.App.5th 564, 575 [“under section 472, the right to amend a cross-complaint as a matter of right is...limited to the original version of the cross-complaint”.])

Nguyen filed a First Amended Cross-Complaint (“FACC”) on April 23, 2026. Pursuant to the holding in *Hedwell*, Section 472 does not provide Nguyen the right to further amend the operative cross-complaint without leave of court. Because Nguyen did not obtain the Court’s

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

leave to file the SACC, it was not filed in conformity with the law and is subject to being struck from the record on the Court’s own motion. (See § 436.)

However, the Court notes the possibility, if not likelihood, that the SACC contains amendments aimed at addressing the deficiencies urged by Cross-Defendants through the Demurrer and Motion to Strike. While Cross-Defendants, through the Reply, urge the Court to strike the SACC, they do not suggest, let alone substantiate with reference to the FACC and SACC, that the amendments in the SACC are unrelated to the issues raised on the present Demurrer and Motion to Strike. Moreover, based on the nature of the Demurrer and Motion to Strike and the allegations of the FACC, *if* the Court were to sustain the Demurrer or grant the Motion, it would do so with leave to amend. Striking the SACC, only to grant Nguyen leave to refile it, would be a waste of judicial, as well as party, resources.

That said, it is neither Cross-Defendants’ nor the Court’s responsibility to compare the SACC with the FACC to determine the nature of the amendments. The Court therefore orders Nguyen to serve and file, no later than August 12, 2026:

- 1) A Memorandum that “[s]tate[s] what allegations in the previous pleading are . . . deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and . . . [s]tate[s] what allegations are . . . added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.” (Cal Rules of Court, rule 3.1324(a).) and
- 2) A Declaration specifying:
 - a. The effect of the amendment;
 - b. Why the amendment is necessary and proper; and,
 - c. Whether and to what extent the amendment addresses issues raised in Cross-Defendants’ Demurrer and Motion to Strike. (*Id.* at rule 3.1324(b).)

If the SACC reflects a *good faith effort* by Nguyen to address the deficiencies urged by Cross-Defendants through the Demurrer and Motion, even if Cross-Defendants believe that it does not adequately address those deficiencies, the Court will be inclined to permit it to remain the operative cross-complaint, grant Cross-Defendants additional time to respond thereto, and find the present Demurrer and Motion MOOT. However, if the amendments to the SACC are not limited to attempts to cure deficiencies asserted through the Demurrer and Motion, the Court will be inclined to strike it and consider the Demurrer and Motion.

Cross-Defendants are granted leave to serve and file, no later than August 19, 2026, a Sur-Reply of no more than 12 pages. If Cross-Defendants consent to the filing of the SACC, the Sur-Reply shall so state. If Cross-Defendants continue to oppose the filing of the SACC, the Sur-Reply shall explain Cross-Defendants’ continuing opposition in light of the foregoing.

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Tifnique Garrison v. Store Storage

26CV000996

DEFENDANT STORE MANAGEMENT, LLC’S DEMURRER TO COMPLAINT

TENTATIVE RULING: The demurrer appears to be MOOT. “A party may amend its pleading once without leave of the court at any time . . . after a demurrer . . . is filed but before the demurrer . . . is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer . . .” (Code Civ. Proc., § 472, subd. (a).)

Plaintiff filed a First Amended Complaint (FAC) prior to the date on which an opposition to the present demurrer was due. There is no proof of service of the FAC appearing in the Court’s file. Presuming, however, that the FAC was timely served, the issues raised by the present demurrer are MOOT.

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Jose Guadalupe Valdes Flores v. Cruz Angel Castro et al

26CV001090

DEFENDANTS POSITIVE INVESTMENTS, INC.; PRIME A INVESTMENTS-VICTORVILLE, LLC; AND PI PROPERTIES 113 PARTNERS, LLC’S MOTION TO STRIKE PLAINTIFF JOSE GUADALUPE VALDES FLORES’ PRAYER FOR PUNITIVE DAMAGES

TENTATIVE RULING: The motion is DENIED. Entity Defendants (defined below), and each of them, are granted 10 calendar days’ leave to file an Answer to the Complaint.

Defendants Positive Investments, Inc. (PI); Prime A Investments-Victorville, LLC (PRIME A); and PI Properties 113 Partners, LLC (PIP-113, and collectively as Entity Defendants) move, pursuant to Code of Civil Procedure sections 435.5 and 438 for an order striking from Plaintiff’s Complaint in the action: (1) the prayer for punitive damages; (2) certain allegations relating thereto in paragraphs 6, 52, 64, and 66; and (3) paragraph 49 in its entirety.

Entity Defendants’ Request for Judicial Notice is GRANTED. The Court takes judicial notice of the Complaint filed in this action, but not for the truth of any matter alleged therein.

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. §436.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (*Id.* at §437, subd. (a).) In ruling on a motion to strike, the Court is to “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Turman v. Turning Point of Central Cal., Inc.*, *supra*, 191 Cal.App.4th at 63.)

“The appropriate procedural device for challenging a portion of a cause of action seeking an improper remedy is a motion to strike.” (*Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 385.)

However, “[t]he grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).) As such, in ruling on a motion to strike the Court is required to assume

the truth of the allegations. (See *Clausen v. Super. Ct.* (1998) 67 Cal.App.4th 1253, 1255.) The Court is to “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Turman v. Turning Point of Central Cal., Inc.*, *supra*, 191 Cal.App.4th at 63.) Finally, as to a claim that matters are irrelevant, where a motion to strike is so broad as to include relevant matters, it may be denied in its entirety. (*Allerton v. King* (1929) 96 Cal.App.230, 234.)

“The civil law is normally concerned with compensating victims for actual injuries sustained at the hands of a tortfeasor. Punitive damages are an exception to this rule. Since 1872, they have been statutorily authorized in actions ‘not arising from contract’ where the tortious event involves an additional egregious component – ‘oppression, fraud, or malice.’ [Citation.] Punitive damages are to be assessed in an amount which, depending upon the defendant’s financial worth and other factors, will deter him and others from committing similar misdeeds. [Citation.] Because compensatory damages are designed to make the plaintiff ‘whole,’ punitive damages are a ‘windfall’ form of recovery. [Citation.]” (*College Hospital Inc. v. Super. Ct.* (1994) 8 Cal.4th 704, 710-11.)

Thus, to adequately state a claim for punitive damages, a complaint must contain allegations that the defendant has been guilty of oppression, fraud or malice. (Civil Code § 3294, subd. (a); *Turman v. Turning Point of Central Cal., Inc.* (2010) 191 Cal.App.4th 53, 63.) “Malice” includes “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code § 3294, subd. (c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at subd. (c)(2).)

Moreover, allegations of these elements must be pled with exactitude. (*G.D. Searle & Co. v. Super. Court* (1975) 49 Cal.App.3d 22, 27. “When nondeliberate injury is charged, allegations that the defendant’s conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice.” (*Id.* at 29.) Mere conclusory allegations parroting the language of the statute will not suffice to support a prayer for punitive damages. (*Smith v. Super. Court* (1992) 10 Cal.App.4th 1033, 1042.) However, because the Court reads the allegations of the operative pleading as a whole, “[p]leading in the language of the statute is not objectionable when sufficient facts are alleged to support the allegation.” (*Perkins v. Super. Court* (1981) 117 Cal.App.3d 1, 6-7.) An order striking a claim for punitive damages is improper where the complaint provides notice to the defendants of a plaintiff’s “precise claims against them.” (*Id.* at 7.)

The Court finds that the Complaint contains allegations sufficient to satisfy the applicable pleading standard to support a prayer for punitive damages. (See *id.* at ¶¶ 2-4, 12, 15-16, 22, 24-25, 28-31, 34-37, 48-51.) The Court finds that the Complaint also contains allegations sufficient to satisfy the requirement of Civil Code section 3294, subdivision (b) that “[w]ith respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (See *id.* at ¶¶ 4, 12, 15-16, 28-30, 35-37, and 50.)

Entity Defendants variously contend that Plaintiff is unable to “prove” his claims (see, *e.g.*, Support Memo at 8:12-14) and/or “does not present evidence” in support of the motion (see *id.* at 10:8-11.) At the pleading stage, Plaintiff is required to neither present evidence nor prove any matters.

Entity Defendants contend that “Plaintiff has not provided any specific facts that the Business Entity Defendants knowingly intended for Defendant CASTRO to cause injury against Plaintiff FLORES. There is no evidence that the Business Entity Defendants had advanced warning that a lawless assault against Plaintiff was actually imminent which the Business Entity Defendants willfully suppressed, or that the Business Entity Defendants had any ability *ab initio* to stop the assault.” (Support Memo at 8:14-20.)

None of the authority cited by Entity Defendants, however, supports the suggestion that, in order to support a pray for punitive damages, a plaintiff is required to plead that a defendant intended for the injury to occur. While such intention is certainly sufficient to support the prayer, it is not necessary. As the authority cited by Entity Defendants, and the authority discussed above, makes clear, allegations of “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others” or “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (Civil Code § 3294, subd. (c)(1) and (2).) As noted above, the Court finds that Plaintiff has adequately pled facts of these elements.

Finally, the Court finds no merit in Entity Defendants’ public policy arguments. Caselaw provides that punitive damages are appropriate in actions against residential landlords and property managers, where “pleadings sufficiently allege facts setting forth long existing physical conditions of the premises which portend danger for the tenants [and] set out that respondents knew of those conditions for up to two years, had power to make changes, but failed to take corrective and curative measures.” (*Penner v. Falk* (1984) 153 Cal.App.3d 858, 867.) While the details of the allegations here differ in certain respects, the Court finds that the holding in *Penner v. Falk* is sufficient to foreclose the argument that permitting punitive damages in such circumstances is against public policy.

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In The Matter of Cameron Dean Busquaert

26CV001237

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

